

১. আরডিসি
২. এলএও
৩. জিসিও
৪. ডাঃ কঃ আরএম
৫. ডাঃ কঃ রেকর্ডরুম
৬. সিএ
৭. গার্ড ফাইল

০৪ AUG 2021

অতিঃ জেঃ হঃ (রাজ্য)
কিশোরগঞ্জ

গণপ্রজাতন্ত্রী বাংলাদেশ সরকার
উপজেলা ভূমি অফিস
নিকলী, কিশোরগঞ্জ।

১. উপপরিচালক, স্থানীয় সরকার
২. জঃ জেঃ হঃ (সার্বিক)
৩. জঃ জেঃ হঃ (রাজ্য)
৪. সঃ জেঃ হঃ (শিঃ উঃ ও তঃ হঃ)
৫. জঃ জেঃ হঃ (সিঃ উঃ ও তঃ হঃ)
৬. গোপনীয় সহকারী

০৩ AUG 2021

জেলা প্রশাসক
কিশোরগঞ্জ

তারিখঃ ০২/০৮/২০২১ খ্রি.

বিষয়ঃ মহামান্য সুপ্রীম কোর্টের হাইকোর্ট বিভাগের ৩৮৬/২০২১ নং রীট পিটিশন মোকদ্দমার দফাওয়ারী জবাব ইংরেজীতে প্রেরণ
করা হবে।

সূত্রঃ ১। মহোদয় কার্যালয়ের আরক নং-৫১৩/আর, এম, তাং-০৭/০৮/২০২১ খ্রি।
২। দামপাড়া ইউঃ ভূমি অফিসের আরক নং-ইউঃ/ভূঃ/অঃ/দামঃ-২০২১-৫০, তারিখ-১৩/০৬/২০২১।

উপর্যুক্ত বিষয় ও সূত্রোক্ত আরকের প্রেক্ষিতে মহামান্য সুপ্রীম কোর্টের হাইকোর্ট বিভাগের ৩৮৬/২০২১ নং রীট পিটিশন মোকদ্দমার দফাওয়ারী জবাব ইংরেজীতে প্রস্তুতপূর্বক ইউনিয়ন ভূমি সহকারী কর্মকর্তা, দামপাড়া ইউনিয়ন ভূমি অফিস অত্রাফিসে প্রেরণ করেন। উক্ত জবাব পর্যালোচনায় দেখা যায়, মোকদ্দমাভুক্ত ভূমি সরকারি ১নং খাস খতিয়ানভুক্ত নদী শ্রেণির ভূমি। উক্ত ভূমিতে সরকারি স্বার্থ বিদ্যমান।

এমতাবস্থায়, দামপাড়া ইউনিয়ন ভূমি অফিসের সূত্রোক্ত আরকে প্রেরিত জবাবের সাথে একমত পোষন করতঃ উক্ত জবাবের ২(দুই) প্রহু এবং আনুষংগিক কাগজপত্র মহোদয়ের সদয় অবগতি ও পরবর্তী প্রয়োজনীয় ব্যবস্থা গ্রহণের নিমিত্ত প্রেরণ করা হলো।

জেলা প্রশাসক
কিশোরগঞ্জ।

দৃষ্টি আকর্ষণঃ ভারপ্রাপ্ত কর্মকর্তা
রাজস্ব মুগিখানা
কিশোরগঞ্জ কালেক্টরেট।

(মোঃ আসসাাদিকজামান)

উপজেলা নির্বাহী অফিসার

ও

সহকারী কমিশনার (ভূমি)(অঃদাঃ)
নিকলী, কিশোরগঞ্জ।

Para wise statement of writ petition No. 386/2021 of Honorable High Court
Division of Bangladesh Supreme Court, Dhaka Bangladesh.

Petitioner:

Bacchu Mia & 4(four) others
secretary of M/O

Respondents:

(1) Bangladesh represented by the

Law and justice and parliamentary affairs.

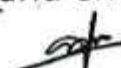
(2) Learned joint District Judge, Land
survey Tribunal

of Kishoreganj.

(3) Deputy Commissioner, Kishoreganj.

Para 1-3: No comments.

Para 4 (a): The petitioner claims are not based on facts. The suit land belongs to Nikli Upazilla of Kishoreganj district under mouja Dhiruail and measuring an area of 8.03 acres. As per C/S record the plot No. 1333/1487 class of land river and the land also part of Madainagar Dhonu Nodi fishery and that the suit land are fallen Madainagar mouja and S.A record published under khatian No. 2 with a remarks that the class of land as rivers. Thereafter at the time of preparing "Bangladesh Revisional Survey" (BRS) which was stated & that the instituted 1982 and the survey department prepared "mouja map" and showing the suit land as river (Copy of the mouza map enclosed here with). Even the record of rights was lawfully published under khatian No. 1 and showing a separate plot No.885 and



measuring an area of land 8.83 acres in the name of Bangladesh Government. It is also stated here that as per provision of the state acquisition "Act 1950" under clause 20(a) the rant receiving interest was withdrawn and the class of river was stand acquired and make a owner of the land "Collector Mymensingh". The question of showing ownership as third party predecessors of C.S tenant was wrong. Though the land as river and the land automatically under possession of the government and used by the peoples as "people's right". So The question of record correction does not arise. It is stated here that the petitioner's claim serving a "advocate notice" is not correct. The claim of the petitioner the suit land of 8.2 decimal in the name of Horoschandra Chakroborty and others and in absence of Horoschandra Chakroborty, Tara Sankar Chakroborty and 4(four) others were legal heirs and given satealment on 09.11.1945 in favor Abdul Hakim and Ahamed Munsii. The predecessors of the petitioners claiming that so called Kobuliot dated 09.11.1945 and executive the same and given possession such a fake history. If the land was cultivated and possessing the land by the predecessors on 09.11.45. the land should be recorded in the name of petitioner's predecessors. Another question if they in peaceful possession the S.A record must in the name of Ahamad ali and others and they have to must submitting miss case against the S.A record. As per petitioners claim they have submitted a civil suit bearing No. 38/1994 in the Learned Court of Sub Judge Kishoreganj and accorded decree in favor of petitioner's predecessors which is never binding upon the government though the respondent was not party in that suit and that decree was expertly. The claim of the petitioners the suit land transferred and the registered deed No. 2294 dated 12.11.1906 is not lawfull thou they have not legal right in the suit land and that fake deed is not binding upon the respondents. The



petitioners filled this writ petition against the judgment and decree dated 27.10.2020 (decree signed on 03.11.20) passed by the respondent No.2 Tribunal in Land Survey Court that the Tribunal suit No.4901/2013 was lawfully dismissed. As per judgment and decree by the learned Murshid Ahamed learned judge on 27.10.2020 with giving clear findings though the PW-1 and others was presents and examining the records. The claim of the petitioner's suit land given kobuliot on 09.11.1945 A.D which was 1352 B.S and for their claims and accord expertly decree. But that so-called kobuliot was not able to submit and as per kobuliot never executed patta deed and no other records did not able to producing in the learned Tribunal Court. Moreover a petitioners claims that the suit land decreed by the Sub-Ordinate Judge Kishoreganj vide O/C suit No. 38/94 besides the record of C.S and S.A class of land was recorded as river. The learned court also given finding the class of Land River. There is no scope of record the suit land in the name of any personal. Moreover learned court also remarks there the petitioners did not submit any lawful objection against the R.S record under section 30/31 of S.A and T.A act 1950.

The question of maintaining the suit does not arise and the land survey court case no-4901/2013 was dismissed. The claim of the petitioners fake and melafied intension. The honorable Tribunal was accepted the case. But the petitioner was not able to submit kobuliot, patta deed and objection, petition under section 30/31 of S.A and T.A act.

Moreover no merits in favor of the petitioners in the learned court kind enough to dismissed the case and given judgment and decree in the open court for end of justice. It is not correct the petitioners possessing the suit lands and now there in



Para wise statement of writ petition No. 386/2021 of Honorable High Court
Division of Bangladesh Supreme Court, Dhaka Bangladesh.

Petitioner:

Bacchu Mia & 4(four) others
secretary of M/O

Respondents:

(1) Bangladesh represented by the

Law and justice and parliamentary affairs.

(2) Learned joint District Judge, Land
survey Tribunal

of Kishoreganj.

(3) Deputy Commissioner, Kishoreganj.

Para 1-3: No comments.

Para 4 (a): The petitioner claims are not based on facts. The suit land belongs to Nikli Upazilla of Kishoreganj district under mouja Dhiruail and measuring an area of 8.03 acres. As per C/S record the plot No. 1333/1487 class of land river and the land also part of Madainagar Dhonu Nodi fishery and that the suit land are fallen Madainagar mouja and S.A record published under khatian No. 2 with a remarks that the class of land as rivers. Thereafter at the time of preparing "Bangladesh Revisional Survey" (BRS) which was stated & that the instituted 1982 and the survey department prepared "mouja map" and showing the suit land as river (Copy of the mouza map enclosed here with). Even the record of rights was lawfully published under khatian No. 1 and showing a separate plot No.885 and

measuring an area of land 8.83 acres in the name of Bangladesh Government. It is also stated here that as per provision of the state acquisition "Act 1950" under clause 20(a) the rant receiving interest was withdrawn and the class of river was stand acquired and make a owner of the land "Collector Mymensingh". The question of showing ownership as third party predecessors of C.S tenant was wrong. Though the land as river and the land automatically under possession of the government and used by the peoples as "people's right". So The question of record correction does not arise. It is stated here that the petitioner's claim serving a "advocate notice" is not correct. The claim of the petitioner the suit land of 8.2 decimal in the name of Horoschandra Chakroborty and others and in absence of Horoschandra Chakroborty, Tara Sankar Chakroborty and 4(four) others were legal heirs and given satealment on 09.11.1945 in favor Abdul Hakim and Ahamed Munsii. The predecessors of the petitioners claiming that so called Kobuliot dated 09.11.1945 and executive the same and given possession such a fake history. If the land was cultivated and possessing the land by the predecessors on 09.11.45. the land should be recorded in the name of petitioner's predecessors. Another question if they in peaceful possession the S.A record must in the name of Ahamad ali and others and they have to must submitting miss case against the S.A record. As per petitioners claim they have submitted a civil suit bearing No. 38/1994 in the Learned Court of Sub Judge Kishoreganj and accorded decree in favor of petitioner's predecessors which is never binding upon the government though the respondent was not party in that suit and that decree was expertly. The claim of the petitioners the suit land transferred and the registered deed No. 2294 dated 12.11.1906 is not lawfull thou they have not legal right in the suit land and that fake deed is not binding upon the respondents. The



Petitioners filled this writ petition against the judgment and decree dated 27.10.2020 (decree signed on 03.11.20) passed by the respondent No.2 Tribunal in Land Survey Court that the Tribunal suit No.4901/2013 was lawfully dismissed. As per judgment and decree by the learned Murshid Ahamed learned judge on 27.10.2020 with giving clear findings though the PW-1 and others was presents and examining the records. The claim of the petitioner's suit land given kobuliot on 09.11.1945 A.D which was 1352 B.S and for their claims and accord expertly decree. But that so-called kobuliot was not able to submit and as per kobuliot never executed patta deed and no other records did not able to producing in the learned Tribunal Court. Moreover a petitioners claims that the suit land decreed by the Sub-Ordinate Judge Kishoreganj vide O/C suit No. 38/94 besides the record of C.S and S.A class of land was recorded as river. The learned court also given finding the class of Land River. There is no scope of record the suit land in the name of any personal. Moreover learned court also remarks there the petitioners did not submit any lawful objection against the R.S record under section 30/31 of S.A and T.A act 1950.

The question of maintaining the suit does not arise and the land survey court case no-4901/2013 was dismissed. The claim of the petitioners fake and melafied intension. The honorable Tribunal was accepted the case. But the petitioner was not able to submit kobuliot, patta deed and objection, petition under section 30/31 of S.A and T.A act.

Moreover no merits in favor of the petitioners in the learned court kind enough to dismissed the case and given judgment and decree in the open court for end of justice. It is not correct the petitioners possessing the suit lands and now there in



Peaceful possession is not correct. The mouja map of the Dhiruail mouja of R.S, C.S and S.A records and R.S record also submitted there for kind perusal of the honorable court. It is also stated here that the photocopy of so-called rent receipt in the name of Abdul Hakim and others for the year 1379-1397 B.S and paying khajna of taka 5785.40 paisa and the receipt was 'provisional' also. A khatian of record correction khatian No. 246 for 7.96 acres vide miss case No.6(13) 9596 which was sign illegible on 25.06.97 without prior permission if the collector that the papers managed with the collaboration with the corrupt employees. R.S khatian No.1 of Dhiruail mouja and the plot index of the said mouja also submitted for kind perusal of the honorable court. In fact the suit land a part of land of river and the river are flowing and peoples using the suit lands as is men right and moreover this suit land Madainagar fishery and this fishery renounced Dhonu Nodi. This writ petition submitted by the petitioners submitted by the petitioners only to disrupt the government fishery. They have no right and any locus standi. So the writ petition may kindly be reject for the end of justice. Otherwise the government side would deprive from revenue earning.


09/07/22
অনিল কুমার বর্মন
সহকারী কমিশনার (ভূমি)
মিলকী, কিশোরগঞ্জ।


22/7/22
মুহাম্মদ রাহিমুল্লাহ রহমান
ইউনিয়ন ভূমি সহকারী কর্মকর্তা
দামপাড়া ইউনিয়ন ভূমি অফিস
নিকলী, কিশোরগঞ্জ।

U.L.A.O. দাখল
১৩/৮/২০২১

গণপ্রজাতন্ত্রী বাংলাদেশ সরকার
জেলা প্রশাসকের কার্যালয়
(আর.এম শাখা)
কিশোরগঞ্জ।

www.dckishoreganj.gov.bd.

০১	অতিরিক্ত সচিব	প্রতি
০২	উপসচিব	তার
০৩	সচিব	
০৪	সহকারী সচিব	
০৫	সহকারী সচিব	
০৬	সহকারী সচিব	
০৭	সহকারী সচিব	
০৮	সহকারী সচিব	
০৯	সহকারী সচিব	
১০	সহকারী সচিব	
১১	সহকারী সচিব	
১২	সহকারী সচিব	
১৩	সহকারী সচিব	
১৪	সহকারী সচিব	
১৫	সহকারী সচিব	
১৬	সহকারী সচিব	
১৭	সহকারী সচিব	
১৮	সহকারী সচিব	
১৯	সহকারী সচিব	
২০	সহকারী সচিব	
২১	সহকারী সচিব	
২২	সহকারী সচিব	
২৩	সহকারী সচিব	
২৪	সহকারী সচিব	
২৫	সহকারী সচিব	
২৬	সহকারী সচিব	
২৭	সহকারী সচিব	
২৮	সহকারী সচিব	
২৯	সহকারী সচিব	
৩০	সহকারী সচিব	
৩১	সহকারী সচিব	
৩২	সহকারী সচিব	
৩৩	সহকারী সচিব	
৩৪	সহকারী সচিব	
৩৫	সহকারী সচিব	
৩৬	সহকারী সচিব	
৩৭	সহকারী সচিব	
৩৮	সহকারী সচিব	
৩৯	সহকারী সচিব	
৪০	সহকারী সচিব	
৪১	সহকারী সচিব	
৪২	সহকারী সচিব	
৪৩	সহকারী সচিব	
৪৪	সহকারী সচিব	
৪৫	সহকারী সচিব	
৪৬	সহকারী সচিব	
৪৭	সহকারী সচিব	
৪৮	সহকারী সচিব	
৪৯	সহকারী সচিব	
৫০	সহকারী সচিব	
৫১	সহকারী সচিব	
৫২	সহকারী সচিব	
৫৩	সহকারী সচিব	
৫৪	সহকারী সচিব	
৫৫	সহকারী সচিব	
৫৬	সহকারী সচিব	
৫৭	সহকারী সচিব	
৫৮	সহকারী সচিব	
৫৯	সহকারী সচিব	
৬০	সহকারী সচিব	
৬১	সহকারী সচিব	
৬২	সহকারী সচিব	
৬৩	সহকারী সচিব	
৬৪	সহকারী সচিব	
৬৫	সহকারী সচিব	
৬৬	সহকারী সচিব	
৬৭	সহকারী সচিব	
৬৮	সহকারী সচিব	
৬৯	সহকারী সচিব	
৭০	সহকারী সচিব	
৭১	সহকারী সচিব	
৭২	সহকারী সচিব	
৭৩	সহকারী সচিব	
৭৪	সহকারী সচিব	
৭৫	সহকারী সচিব	
৭৬	সহকারী সচিব	
৭৭	সহকারী সচিব	
৭৮	সহকারী সচিব	
৭৯	সহকারী সচিব	
৮০	সহকারী সচিব	
৮১	সহকারী সচিব	
৮২	সহকারী সচিব	
৮৩	সহকারী সচিব	
৮৪	সহকারী সচিব	
৮৫	সহকারী সচিব	
৮৬	সহকারী সচিব	
৮৭	সহকারী সচিব	
৮৮	সহকারী সচিব	
৮৯	সহকারী সচিব	
৯০	সহকারী সচিব	
৯১	সহকারী সচিব	
৯২	সহকারী সচিব	
৯৩	সহকারী সচিব	
৯৪	সহকারী সচিব	
৯৫	সহকারী সচিব	
৯৬	সহকারী সচিব	
৯৭	সহকারী সচিব	
৯৮	সহকারী সচিব	
৯৯	সহকারী সচিব	
১০০	সহকারী সচিব	

তারিখ: ১০/০৮/২০২১ খ্রিঃ।

স্মারক নং - ৫১৬ /আর.এম

বিষয়ঃ মহামান্য সুপ্রীম কোর্টের হাইকোর্ট বিভাগে ৩৮৬/২০২১ নং রীট পিটিশন মোকদ্দমা দফওয়ারী ইংরেজীতে জবাব প্রেরণ প্রসংগে।

উপর্যুক্ত বিষয়ে মহামান্য সুপ্রীম কোর্টের হাইকোর্ট বিভাগের ৩৮৬/২০২১ নং রীট পিটিশন মোকদ্দমার ৩১শে জানুয়ারী / ২০২১ খ্রি. তারিখের আদেশ ও আরজি এতদসংগে তাঁর বরাবরে প্রেরণ করা হলো। উক্ত রীট পিটিশন মোকদ্দমার আরজি ভিত্তিক তথ্য বিবরণী (ইংরেজীতে) এবং তথ্য বিবরণীর সমর্থনে আবশ্যিকীয় কাগজপত্রসহ (সত্যায়িত দুই প্রস্থ) আগামি ১৮/০৮/২০২১ খ্রি. তারিখের মধ্যে এ শাখায় প্রেরণ নিশ্চিত করার জন্য তাঁকে অনুরোধ করা হলো।

সংযুক্তঃ ফর্দ।

সহকারী কমিশনার (ভূমি)
নিকলী, কিশোরগঞ্জ।

১০/০৮/২১
ভারপ্রাপ্ত কর্মকর্তা
আর.এম শাখা
কিশোরগঞ্জ কালেক্টরেট।

অনুলিপি: সদয় জ্ঞাতার্থে

- ০১। উপজেলা নির্বাহী অফিসার নিকলী, কিশোরগঞ্জ।
- ০২। সহকারী কমিশনার (গাপনীয়), জেলা প্রশাসক মহোদয়ের সদয় অবগতির জন্য।
- ০৩। অফিস কপি।

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)
WRIT PETITION No. 386 of 2021

The 31st day of January, in the year of two thousand twenty one.

Present:

Mr. Justice Md. Khasruzzaman.

-And-

Mr. Justice Md. Mahmud Hassan T.

IN THE MATTER OF:

1. Baccin Mia
2. Awal Mia
3. Khokon Mia
4. Shujon Mia
5. Rahima Ali sons and daughter of Late A. Hakim, of Village-Dori Ganggatin, Post Office-Urdighi Notun Bazar, Police Station-Karimganj and District-Kishoreganj.

১. আবজিসি
২. এমএও
৩. জিএস
৪. জিএস আরএম
৫. জিএস বেকডক্স
৬. গিএ
৭. গার্ড ফাইল
৮. অফিস (সহায়)
৯. কিশোরগঞ্জ

29 MAR 2021

-VERSUS-

Bangladesh, represented by the Secretary, Ministry of Law, Justice and Parliamentary Affairs, Bangladesh Secretariat, Ramna, Dhaka-1000 and others.....Respondents.

1. Bangladesh, represented by the Secretary, Ministry of Law, Justice and Parliamentary Affairs, Bangladesh Secretariat, Ramna, Dhaka-1000.
2. Learned Joint District Judge, Land Survey Tribunal, Kishoreganj.
3. Deputy Commissioner, Kishoreganj.

Whereas the petition abovementioned has been preferred by the petitioner above named to this Court against Judgment and Decree dated 27.10.2020 (Decree signed on 03.11.2020) (Annexures-"A" and "A-1") passed by the respondent No. 2- Tribunal in Land Survey Tribunal Suit No. 4901 of 2013 dismissing the suit.

The records of the case be called for.

Now upon hearing Mr. Md. Raziuddin Sarwar, Advocate For the Petitioners, Mr. Bipul Bagmar, D.A.G with Mr. Md. Salim Azad, A.A.G. and Mr. Md. Delwar Hossain, AAG For the Respondents, and upon consideration of the said petition this Court doth order and do issue a Rule Nisi calling upon you the aforesaid respondents to show cause on or before the 28th February, 2021 as to why the impugned judgment and decree dated 27.10.2020 (decree signed on 3.11.2020) passed by the learned Judge, Land Survey Tribunal, Kishoreganj in Land Survey Tribunal Suit No. 4901 of 2013 dismissing the suit shall not be declared to have been passed without lawful authority and is of no legal effect and/or to pass such other or further order or orders as to this Court may seem fit and proper.

Pending hearing of the Rule, let operation the impugned judgment and decree dated 27.10.2020 (decree signed on 3.11.2020) passed by the learned Judge, Land Survey Tribunal, Kishoreganj in Land Survey Tribunal Suit No. 4901 of 2013 be stayed and the parties are direction to maintain status quo in respect of possession of the case land for a period of 6(six) months from date.

The petitioners are directed to put in two sets of requisites for service of notices both in usual course as well as through registered post within 3 working days.

Witnesses Mr. Justice Syed Mahmud Hossain, the Hon'ble Chief Justice of Bangladesh on this the 31st day of January, in the year of two thousand twenty one.

Superintendent
04.02.2021

Assistant Registrar
04.02.2021

Typed by: 04.02.2021.

Read by:

Examined by:

Rendered by:

04.02.2021

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

WRIT PETITION NO. 386 OF 2021

IN THE MATTER OF:

Bacchu Mia and others

... Petitioners

-Versus-

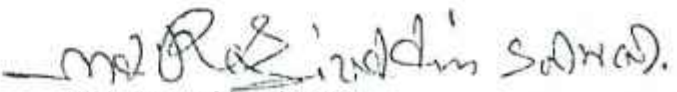
Bangladesh and others

... Respondents

INDEX OF THE PAPERS

SL. NO.	PARTICULARS	ANNEXURES	DATE	PAGE NO.
1.	Writ Petition		10.01.21	1-16
2.	Certified copies of the impugned Judgment and Decree passed by the respondent No. 2-Tribunal in Land Survey Tribunal Suit No. 4901 of 2013	"A" "A-1"	27.10.2020 03.11.2020	18-19 20-23
3.	Certified copy of the Plaint filed in Land Survey Tribunal Suit No. 4901 of 2013	"B"		25-30
4.	Original copy of the Power of Attorney	"C"	07.01.2021	32-34

Filed by:



Md. Razuiddin Sarwar

Advocate

For the Petitioners

বিশ্ব বিন বিশ্ব বিশ্ব বিশ্ব বিশ্ব বিশ্ব বিশ্ব বিশ্ব বিশ্ব
টাকা টাকা টাকা টাকা টাকা টাকা টাকা টাকা টাকা টাকা

বিশ্ব বিশ্ব বিশ্ব বিশ্ব বিশ্ব বিশ্ব বিশ্ব বিশ্ব বিশ্ব
টাকা টাকা টাকা টাকা টাকা টাকা টাকা টাকা টাকা টাকা



বাংলা
কোর্ট

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(SPECIAL ORIGINAL JURISDICTION)

WRIT PETITION NO. 386 OF 2021

IN THE MATTER OF:

10.01.21

02.45
210
450/2

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh

-AND-

IN THE MATTER OF:

1. Bacchu Mia
2. Awal Mia
3. Khokon Mia
4. Shujon Mia
5. Rahima

All sons and daughter of Late A.
Hakim, of Village – Dori Ganggatia,
Post Office – Urdighi Notun Bazar,
Police Station – Karimganj and District
– Kishoreganj

... Petitioners

-V E R S U S-

1. Bangladesh, represented by the
Secretary, Ministry of Law, Justice and
Parliamentary Affairs, Bangladesh
Secretariat, Ramna, Dhaka – 1000
2. Learned Joint District Judge, Land
Survey Tribunal, Kishoreganj
3. Deputy Commissioner, Kishoreganj

... Respondents

-AND-

IN THE MATTER OF:

Judgment and Decree dated 27.10.2020
(Decree signed on 03.11.2020) (Annexures
- "A" and "A-1") passed by the
respondent No. 2-Tribunal in Land Survey
Tribunal Suit No. 4901 of 2013 dismissing
the suit

To

Mr. Justice Syed Mahmud Hossain, the Hon'ble Chief Justice of
Bangladesh, and his Companion Justices of the said Hon'ble Court.

The humble petition on behalf of the
petitioners above-named most respectfully -

S H E W E T H:

1. The petitioners are law-abiding and peace loving citizens of Bangladesh. The address of the petitioners is mentioned in the cause title. All notices etc. in respect of this Writ Petition may be served upon the petitioners through their lawyers, Hossain & Khan

Associates, Suite No. 10-B, Saiham Skyview Tower, 45 Bijoy Nagar, Ramna, Dhaka-1000 (or at their Court Chambers' address: Room No. 311, Supreme Court Bar Association Building, Ramna, Dhaka-1000).

2. The petitioners herein impugn the Judgment and Decree dated 27.10.2020 (Decree signed on 03.11.2020) passed by the respondent No. 2-Tribunal in Land Survey Tribunal Suit No. 4901 of 2013 dismissing the suit. Certified copies of the impugned Judgment and Decree dated 27.10.2020 (Decree signed on 03.11.2020) passed by the respondent No. 2-Tribunal in Land Survey Tribunal Suit No. 4901 of 2013 are annexed hereto and marked ANNEXURES – "A" and "A-1".
3. The petitioners as the plaintiffs instituted the Land Survey Tribunal Suit No. 4901 of 2013 against the respondent No. 3 as the defendant before the respondent No. 2-Tribunal praying for, *inter alia*, the following reliefs:
 - (a) To pass a decree in favour of the petitioners directing the respondent No. 3 to correct the B.S. record by deleting the suit

land from the B.S. Khatian No. 1 and making a separate B.S. Khatian in the name of the petitioners.

(b) To grant any other relief or reliefs to which the petitioners are entitled under law and equity.

(c) To award costs of the suit in full in favour of the petitioners and against the respondent No. 3.

4. The petitioners' case as averred in the Plaint, inter alia, is as follows:

(a) The suit land of 8.02 decimals as recorded in the Khatian originally belonged to one Horshongkor Chokroborti who died leaving behind 4 (four) sons, namely, Tara Shongkor, Sharda Shongkor, Kumar Shongkor and Pran Shongkor Chokroborti as his legal heirs, and since then, the said 4 brothers had been in possession of the suit land who provided a settlement on 09.11.1945 to A. Hakim and Ahammad Munshi, the predecessors of the petitioners. Accordingly, upon executing a Kobuliot dated 09.11.1945 in favour of the said 4 brothers, the said A. Hakim and Ahammad Munshi had been in peaceful possession of the suit land as the owners.

land from the B.S. Khatian No. 1 and making a separate B.S. Khatian in the name of the petitioners.

- (b) To grant any other relief or reliefs to which the petitioners are entitled under law and equity.
- (c) To award costs of the suit in full in favour of the petitioners and against the respondent No. 3.

4. The petitioners' case as averred in the Plaint, inter alia, is as follows:

- (a) The suit land of 8.02 decimals as recorded in the Khatian originally belonged to one Horshongkor Chokroborti who died leaving behind 4 (four) sons, namely, Tara Shongkor, Sharda Shongkor, Kumar Shongkor and Pran Shongkor Chokroborti as his legal heirs, and since then, the said 4 brothers had been in possession of the suit land who provided a settlement on 09.11.1945 to A. Hakim and Ahammad Munshi, the predecessors of the petitioners. Accordingly, upon executing a Kobuliot dated 09.11.1945 in favour of the said 4 brothers, the said A. Hakim and Ahammad Muashi had been in peaceful possession of the suit land as the owners.

(b) Since the R.O.R. record was wrongly published in the names of the said 4 brothers, the said A. Hakim and Ahammad Munshi instituted the Suit No. 38 of 1994 before the learned Court of 1st Sub Judge, Kishoreganj, and the suit was decreed in favour of A. Hakim and Ahammad Munshi who, thereafter, got the suit land mutated in their names, and paid the ground rents regularly.

(c) The said A. Hakim died leaving behind the petitioners as his legal heirs. The said Ahammad Munshi transferred some land to the petitioners Nos. 1 to 4 vide registered Deed No. 2293 dated 12.11.1996 and orally in the year, 2000. Accordingly, the petitioners have become the owners of the suit land by way of inheritance and purchase, and have been in peaceful possession of the same for more than 60 years.

(d) The suit land was wrongly recorded in B.S. Khatian No. 1. Hence, the petitioners as the plaintiffs instituted the suit for correction of the B.S. record.

Certified copy of the Plaint filed in Land Survey Tribunal Suit No. 4991 of 2013 is annexed hereto and marked ANNEXURE - "B".

5. The respondent No. 2-Tribunal by its Judgment and Decree dated 27.10.2020 (Decree signed on 03.11.2020) dismissed the suit against the petitioners.
6. It is submitted that the impugned Judgment and Decree is without lawful authority and of no legal effect since the same is bad in both law and facts, and has been passed by the respondent No. 2-Tribunal without applying judicial mind and, hence, the impugned Judgment and Decree is liable to be set aside.
7. It is submitted that the respondent No. 2-Tribunal failed to appreciate that the petitioners have become the owners of the suit land by way of inheritance and purchase, and have been in peaceful possession of the same for more than 60 years and, hence, the impugned Judgment and Decree is without lawful authority and of no legal effect.
8. It is submitted that the respondent No. 2-Tribunal failed to appreciate that the petitioners' predecessors, namely, A. Hakim and Ahammad Munshi instituted the Suit No. 38 of 1994 for correction of record before the learned Court of 1st Sub Judge, Kishoreganj, and the suit was decreed in favour of A. Hakim and Ahammad Munshi who, thereafter, got the suit land mutated in their names, and paid the

ground rents regularly and, hence, the impugned Judgment and Decree is without lawful authority and of no legal effect.

9. It is submitted that the impugned Judgment and Decree is malice in law, arbitrary, mala fide, unreasonable and for collateral purposes since the respondent No. 2-Tribunal failed to appreciate that the name of the original owner of the suit land was correctly recorded in the Khatian and, as such, the impugned Judgment and Decree is liable to be set aside.
10. It is submitted that the impugned Judgment and Decree is without lawful authority and of no legal effect inasmuch as the same amounts to infringement of the petitioners' fundamental rights as enshrined under Articles 27, 31, and 42 of the Constitution of the People's Republic of Bangladesh.
11. It is submitted that the respondent No. 2-Tribunal misread and misinterpreted the evidence and documents on record, and also ignored the material facts and documents and, as such, the respondent No. 2-Tribunal committed error of law resulting in errors in the impugned Judgment and Decree occasioning failure of justice and, hence, the impugned Judgment and Decree is liable to be set aside.

12. It is submitted that the respondent No. 2-Tribunal passed its Judgment and Decree without considering the evidence and demeanour of the witnesses and without due consideration of the proper aspect of the case and, hence, the impugned Judgment and Decree is liable to be set aside.
13. It is submitted that the respondent No. 1 did not constitute the Land Survey Appellate Tribunal till date and, therefore, having no other efficacious and/or alternative remedy in law, the petitioners have been constrained to file this application under Article 102 of the Constitution of the People's Republic of Bangladesh before the Hon'ble Court.
14. The petitioner Nos. 2 to 5 executed a Power of Attorney dated 07.01.2021 in favour of the petitioner No. 1. Original copy of the Power of Attorney dated 07.01.2021 is annexed hereto and marked ANNEXURE – "C".
15. Thus, being aggrieved by and dissatisfied with the impugned Judgment and Decree dated 27.10.2020 (Decree signed on 03.11.2020) (Annexures – "A" and "A-1") passed by the respondent No. 2-Tribunal in Land Survey Tribunal Suit No. 4901 of 2013, and

having no other efficacious and/or alternative remedy in law, the petitioners file this application under Article 102 of the Constitution of the People's Republic of Bangladesh on the following, amongst others,

G R O U N D S

- I. For that the impugned Judgment and Decree is without lawful authority and of no legal effect since the same is bad in both law and facts, and has been passed by the respondent No. 2-Tribunal without applying judicial mind and, hence, the impugned Judgment and Decree is liable to be set aside.

- II. For that the respondent No. 2-Tribunal failed to appreciate that the petitioners have become the owners of the suit land by way of inheritance and purchase, and have been in peaceful possession of the same for more than 60 years and, hence, the impugned Judgment and Decree is without lawful authority and of no legal effect.

- III. For that the respondent No. 2-Tribunal failed to appreciate that the petitioners' predecessors, namely, A. Hakim and Alammad Munshi instituted the Suit No. 38 of 1994 for correction of record before the learned Court of 1st Sub Judge, Kishoreganj, and the suit was decreed

in favour of A. Hakim and Ahammad Munshi who, thereafter, got the suit land mutated in their names, and paid the ground rents regularly and, hence, the impugned Judgment and Decree is without lawful authority and of no legal effect.

IV. For that the impugned Judgment and Decree is malice in law, arbitrary, mala fide, unreasonable and for collateral purposes since the respondent No. 2-Tribunal failed to appreciate that the name of the original owner of the suit land was correctly recorded in the Khatian and, as such, the impugned Judgment and Decree is liable to be set aside.

V. For that the impugned Judgment and Decree is without lawful authority and of no legal effect inasmuch as the same amounts to infringement of the petitioners' fundamental rights as enshrined under Articles 27, 31 and 42 of the Constitution of the People's Republic of Bangladesh.

VI. For that the respondent No. 2-Tribunal misread and misinterpreted the evidence and documents on record, and also ignored the material facts and documents and, as such, the respondent No. 2-Tribunal committed error of law resulting in errors in the impugned Judgment

and Decree occasioning failure of justice and, hence, the impugned Judgment and Decree is liable to be set aside.

VII. For that the respondent No. 2-Tribunal passed its Judgment and Decree without considering the evidence and demeanour of the witnesses and without due consideration of the proper aspect of the case and, hence, the impugned Judgment and Decree is liable to be set aside.

VIII. For that the respondent No. 1 did not constitute the Land Survey Appellate Tribunal till date and, therefore, having no other efficacious and/or alternative remedy in law, the petitioners have been constrained to file this application under Article 102 of the Constitution of the People's Republic of Bangladesh before the Hon'ble Court.

WHEREFORE, it is most humbly prayed that
Your Lordships may graciously be pleased to:

(A) Issue a Rule Nisi calling upon the
respondents to show cause as to why the
Judgment and Decree dated 27.10.2020

(Decree signed on 03.11.2020) (Annexures – “A” and “A-1”) passed by the respondent No. 2-Tribunal in Land Survey Tribunal Suit No. 4901 of 2013 dismissing the suit shall not be declared to be without lawful authority and of no legal effect, and as to why the Judgment and Decree dated 27.10.2020 (Decree signed on 03.11.2020) passed by the respondent No. 2-Tribunal in Land Survey Tribunal Suit No. 4901 of 2013 dismissing the suit shall not be set aside, and/or pass such other or further order or orders as may be deemed fit and proper;

- (B) Pending disposal of the Rule, stay operation of the impugned Judgment and Decree dated 27.10.2020 (Decree signed on 03.11.2020) (Annexures – “A” and “A-1”) passed by the respondent No. 2-Tribunal in Land Survey Tribunal Suit No. 4901 of 2013 and, further, pass an

order of status-quo with respect to possession and position of the scheduled land;

(C) Upon hearing the parties and causes shown, if any, make the Rule absolute;

(D) Award costs in favour of the petitioners;

(E) Pass such other or further order or orders as may be deemed fit and proper.

And, for this act or acts of kindness, the petitioners, as in duty bound, shall ever pray.

SCHEDULE

All piece and parcel of land measuring 8.02 decimals in Settlement Dag Nos. 1333/1487 of Settlement Khatian Nos. 13, 3, 5 and 10 and in B.S. Dag No. 885 of B.S. Khatian No. 1, Mouza – Baruail, Police Station – Nikoli and District – Kishoreganj.

বিশ
টাকা

দশ
টাকা



বাংলাদেশ
কোর্ট ফি

বিশ
টাকা



বাংলাদেশ
কোর্ট ফি

15

AFFIDAVIT

I, Bacchu Mia alias Md. Bacchu Mia, son of Late A. Hakim and Salemon Nesa, of Village – Dori Ganggatia, Post Office – Urdighi-2310, Police Station – Karimganj and District – Kishoreganj, aged about 53 years, by Profession: Business, by Faith: Muslim, by Nationality: Bangladeshi, National ID No. 4814225621714, do hereby solemnly declare and affirm as follows:

1. That I am the petitioner No. 1 and the lawful attorney of the petitioner Nos. 2 to 5 and, as such, being acquainted and conversant with the facts and circumstances of this case, am competent to swear this affidavit.

2. That the statements of fact made hereinabove are true to my knowledge and belief, and the rest are submissions.
3. That all the certified copies annexed herewith are genuine and true.

Prepared in my office

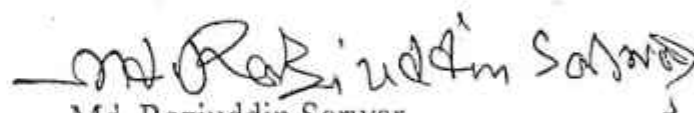


Md. Raziuddin Sarwar
Advocate



Deponent

The deponent is known to
and identified by me



Md. Raziuddin Sarwar
Advocate

ID No. 2098

Room No. 311 SCBA Building

Mobile: 01912828862

Solemnly affirmed by the said
deponent before me on this ____
day of January, 2021 at High
Court premises at _____
a.m./p.m.

10.01.21

COMMISSIONER OF AFFIDAVITS
SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION, DHAKA



- 17- দশ
টাকা



বাংলাদেশ
কোর্ট ফি

ANNEXURES – “A” and “A-1”

Annexures – “A” and “A-1” referred to in
paragraph No. 2 in the annexed petition

COMMISSIONER OF AFFIDAVITS
SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION, DHAKA

-24-

পাত
ঢাকা



বাংলাদেশ
কোর্ট ফি

ANNEXURE - "B"

Annexure - "B" referred to in paragraph No.
4 in the annexed petition

COMMISSIONER OF AFFIDAVITS
SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION, DHAKA